JM SIGNATURE

PUBLISHING AGREEMENT

An Imprint of J Merrill Publishing, Inc.

Traditional Publishing Agreement — Invitation-Only Imprint

This JM Signature Publishing Agreement ("Agreement") is made and entered into as of *2026-08-05*, by and between **J Merrill Publishing, Inc.**, a *Ohio* corporation, publishing under its JM Signature imprint, with its principal place of business at *J Merrill Publishing business address on file* ("Publisher"), and *Validation Author*, an individual residing at *Author address on file* ("Author").

Publisher and Author (each a "Party" and together the "Parties") agree as follows regarding the work titled *Internal Validation Title* (the "Work"), described further in Schedule A attached hereto.

1. Grant of Rights

1.1 Grant. Author hereby grants to Publisher the exclusive right, throughout the Territory defined below and for the Term of this Agreement, to publish, print, reproduce, distribute, and sell the Work in print, electronic (ebook), and audio formats, and to license the subsidiary rights described in Section 6, subject to the terms of this Agreement.

1.2 Territory. The territory covered by this grant is: *[World / United States and Canada / Other — specify]*

1.3 Reservation of Rights. All rights not expressly granted to Publisher are reserved to Author, including without limitation merchandising rights and any rights not enumerated in Sections 1.1 and 6.

1.4 No Author-Borne Production Cost. Publisher shall bear all costs of editing, design, production, printing, distribution, and marketing of the Work. Author shall not be required to pay any fee, cost, or expense as a condition of publication under this Agreement, consistent with JM Signature's status as a traditional (non-hybrid, non-fee-based) imprint of Publisher.

1.5 Invitation-Only Imprint. Publication under the JM Signature imprint is by invitation only. Acceptance of the Work into JM Signature reflects Publisher's editorial judgment regarding this particular Work and shall not create any obligation on Publisher's part to publish, or extend an invitation for, any future work by Author, except by separate written agreement.

2. Term

2.1 Term. This Agreement shall commence on the Effective Date and continue for an initial term of seven (7) years ("Initial Term"). Thereafter, this Agreement shall automatically renew for successive three (3) year terms (each a "Renewal Term," and together with the Initial Term, the "Term") unless either Party provides written notice of non-renewal at least ninety (90) days before the end of the then-current term, or unless earlier terminated as provided herein.

2.2 Rights Reversion. In the event the Work goes out of print, as defined in Schedule B, or Publisher otherwise fails to exploit the Work as required under this Agreement, Author may request reversion of rights in accordance with the reversion procedure set forth in Schedule B.

2.3 Inactivity. A period of twelve (12) consecutive months with no paid sales of the Work in any format shall constitute evidence that the Work may be out of print and shall entitle Author to initiate the reversion procedure set forth exclusively in Schedule B.

3. Delivery, Editorial Review, and Publication

- Author shall deliver the completed manuscript in the form and by the date set forth in Schedule A.
- The Work shall undergo Publisher's standard editorial, design, and production process consistent with JM1's applicable style guide and quality standards.
- Publisher shall consult with Author in good faith regarding title, cover design, and editorial changes, provided that final publication decisions rest with Publisher.
- Publisher shall use commercially reasonable efforts to publish the Work within twelve (12) months following final acceptance of the Manuscript, unless extended by mutual written agreement of the Parties or delayed by force majeure, author-requested revisions, or other circumstances beyond Publisher's reasonable control.

3A. Author Copies

3A.1 Complimentary Copies. Publisher shall provide Author with **ten (10)** complimentary copies of each print edition of the Work. Complimentary copies are excluded from royalty calculations and Net Receipts.

3A.2 Additional Copies. Author may purchase additional copies of the Work from Publisher, for personal use only and not for resale, at a discount of forty percent (40%) off the Work's list/retail price (plus shipping and applicable taxes). Copies purchased by Author may not be resold in any channel of trade in which Publisher's editions are sold.

3B. AI and Future Technologies

3B.1 Disclosure. Author represents that the Work is substantially Author's original creative expression. Any material generated through artificial intelligence must be disclosed to Publisher and remains subject to Publisher's editorial standards and approval.

3B.2 AI Training, Translation, and Narration. Publisher shall not use or authorize the use of the Work to train a public or third-party artificial intelligence model without Author's prior written consent. AI-generated translation of the Work shall require Author's prior written consent. Publisher may use AI-assisted narration and other production technologies selected by Publisher for authorized audiobook editions of the Work, subject to meaningful human direction, quality review, and Publisher's final approval, without separate consent beyond this Agreement.

3B.3 AI in Design and Production. Publisher may use AI tools to assist in design, layout, or production of the Work, provided that final creative output remains substantially human-directed and reviewed.

3C. Manuscript Acceptance and Revision

3C.0 Definition. "Manuscript" means the complete written manuscript and accompanying materials (including any Artwork, Frontmatter, and Backmatter) delivered by Author for editorial review and publication as the Work.

3C.1 Review Period. Publisher shall review a complete Manuscript delivered under Schedule A and provide Author written notice of Acceptance, Conditional Acceptance, requested revisions, or rejection within thirty (30) days of delivery.

3C.2 Acceptance. "Acceptance" or "Final Acceptance" means Publisher's written notice that the Manuscript is acceptable in form and substance for publication. The publication window in Section 3 begins on the date of Final Acceptance.

3C.3 Conditional Acceptance and Revisions. If Publisher requests revisions, Publisher shall provide a written, specific revision roadmap. Author shall deliver revised materials within the timeframe specified by Publisher (or, absent a specified timeframe, within thirty (30) days). Publisher shall review revised materials and issue Final Acceptance, request further revisions, or decline the Manuscript within a reasonable time thereafter.

3C.4 Non-Conforming Delivery. If Author fails to deliver an acceptable Manuscript, including after a reasonable opportunity to revise, Publisher may terminate this Agreement by written notice. Upon such termination, rights granted to Publisher under this Agreement revert to Author.

3D. Marketing Responsibilities

3D.1 Publisher Responsibilities. Publisher shall be responsible for: metadata creation and retailer setup; distribution through Publisher's standard trade channels; standard launch materials customarily provided by Publisher for JM Signature titles at the time of publication; catalog and website listing; review-copy/ARC strategy where applicable; and reasonable title-level marketing activity consistent with Publisher's standard practices for the JM Signature imprint.

3D.2 Author Responsibilities. Author shall be responsible for: providing accurate biography, photograph, and promotional information; reasonable availability for interviews and launch-related activity; cooperation with Publisher's publicity requests; maintaining professional conduct in connection with promotion of the Work; and disclosing planned events or bulk-sale opportunities to Publisher in advance.

3D.3 No Guarantee. Nothing in this Section guarantees any specific level of sales, media coverage, or bestseller status, or any specific marketing expenditure.

3E. Confidentiality

Each Party agrees to keep confidential, and not disclose to third parties without the other Party's prior written consent, unpublished manuscripts, internal editorial communications, financial terms of this Agreement, launch plans, proprietary workflows, and unreleased production assets exchanged in connection with the Work. This obligation does not apply to information that is or becomes publicly available through no fault of the receiving Party, was independently developed by the receiving Party, or must be disclosed pursuant to law, regulation, or legal process, or to each Party's professional advisors under a duty of confidentiality.

4. Royalties

4.1 Basis. All royalties payable to Author under this Agreement are calculated on Net Receipts — meaning the gross amount actually received by Publisher from the sale or licensing of the Work, after deduction of returns, credits, and third-party distributor, wholesaler, or retailer discounts and fees — and not on the list or retail price of the Work.

4.2 Royalty Rates. Author shall be paid royalties on Net Receipts as follows:

Format	Royalty Rate (Net Receipts)
Print (hardcover, trade paperback, and other print editions)	**15%**
Ebook (all electronic formats)	**25%**
Audiobook (all audio formats)	**15%**

4.3 Statements and Payment. Publisher shall render royalty statements and payment to Author on a semi-annual basis, within sixty (60) days following the close of each accounting period, together with a statement showing units sold, returns, Net Receipts, and royalties due, in reasonable detail sufficient for Author to verify the calculation.

4.4 Audit Rights. Author shall have the right, no more than once per calendar year and upon reasonable prior written notice, to audit Publisher's books and records solely as they relate to the Work, at Author's expense unless a discrepancy of five percent (5%) or more in Author's favor is found, in which case Publisher shall bear the reasonable cost of the audit.

5. Advance Against Royalties

5.1 Current Policy. No advance against royalties is payable under this Agreement as of the Effective Date. Author acknowledges and agrees that publication under JM Signature does not, at this time, include an advance payment.

5.2 Reservation of Discretion. Publisher reserves the right, in its sole discretion and on a title-by-title basis, to offer an advance against royalties to Author for this or future works, whether at the time of this Agreement or at any point during the Term. Any such advance, if offered and accepted, shall be documented in a signed written amendment or addendum to this Agreement specifying the amount, payment schedule, and recoupment terms. In the absence of such a signed amendment, no advance obligation exists.

5.3 Non-Returnable. In the event an advance is agreed upon under Section 5.2, such advance shall be non-returnable and shall not be repayable by Author in the event the Work does not earn out, except in cases of breach, non-delivery, or non-acceptance of the Work as separately provided in this Agreement.

6. Subsidiary Rights

6.1 Grant. Author grants to Publisher the exclusive right to license, on Author's behalf, the following subsidiary rights in the Work: foreign language and foreign territory publication rights, dramatic and motion picture/television rights, and serial (first and second) rights (collectively, "Subsidiary Rights").

6.2 Subsidiary Rights Income Split. Net proceeds actually received by Publisher from the licensing of Subsidiary Rights shall be shared between Publisher and Author as follows: Publisher seventy percent (70%), Author thirty percent (30%).

6.3 Administration. Publisher shall administer Subsidiary Rights in good faith and in Author's reasonable commercial interest, and shall provide Author with notice of material offers received. Publisher may engage co-agents, foreign rights representatives, or sub-licensors in connection with the exploitation of Subsidiary Rights; any such third-party fees shall be deducted before the split in Section 6.2 is applied, unless otherwise agreed.

6.4 Reporting. Subsidiary Rights income and deductions shall be itemized separately on the royalty statements described in Section 4.3.

7. Author Warranties and Indemnification

- Author warrants that the Work is original, does not infringe any third-party copyright or other right, and does not contain defamatory, unlawful, or infringing material.
- Author warrants that Author has full right and authority to enter into this Agreement and to grant the rights granted herein.
- Author agrees to indemnify and hold Publisher harmless from any claims, losses, or expenses arising from a breach of the foregoing warranties, subject to any limitations required by applicable law.

7A. Publicity Rights

Author hereby grants Publisher a non-exclusive right to use, and to license others to use, Author's name, image, likeness, and biographical material in connection with the packaging, advertising, promotion, publicity, marketing, and other exploitation of the Work and the rights granted under this Agreement.

7B. Author Non-Competition

Author agrees that, during the Term, Author shall not publish or participate in the publication of any other work that would materially compete with and directly cannibalize sales of the Work (e.g., a substantially similar work in the same specific subject matter and format), without Publisher's prior written consent. This restriction does not limit Author's freedom to publish other, unrelated works during the Term.

7C. Sequels and Related Works

Publisher's rights under this Agreement do not include the right to create sequels or derivative works without Author's separate written agreement. Publisher's trademarks, logos, imprint branding, cover designs, typesetting files, production templates, metadata structures, and other Publisher-created production assets remain Publisher's property. Author retains ownership of the underlying literary content of the Work, including Author-approved editorial revisions incorporated into it, subject to the exclusive rights granted to Publisher during the Term and the reversion terms in Sections 2 and 9.

8. Publisher Obligations

8.1 Production. Publisher shall bear all costs of editing, design, typesetting, printing, distribution setup, and marketing of the Work.

8.2 Distribution. Publisher shall distribute the Work through its standard major trade distribution channels, covering print, ebook, and audio formats as applicable.

8.3 Availability. Publisher shall use commercially reasonable efforts to keep the Work available for sale during the Term, subject to ordinary trade practices regarding out-of-print status as defined in Schedule B.

8.4 Publishing Administration. Publisher shall assign ISBNs for each format published, obtain a Library of Congress Control Number (LCCN) where applicable, prepare retailer metadata, coordinate production and manufacturing, prepare standard launch materials, and maintain the Work's title metadata across Publisher's distribution channels.

8.5 Copyright Registration. Publisher shall register copyright in the Work with the United States Copyright Office in Author's name, consistent with Section 1 of this Agreement.

9. Termination

9.1 Termination for Breach. Either Party may terminate this Agreement upon written notice if the other Party materially breaches this Agreement and fails to cure such breach within thirty (30) days of written notice specifying the breach.

9.2 Effect of Termination. Upon termination, all rights granted to Publisher under this Agreement shall revert to Author, subject to Publisher's right to sell off existing inventory in the ordinary course and Author's right to any royalties accrued but unpaid as of the date of termination.

10. General Provisions

- Governing Law: This Agreement shall be governed by the laws of the State of Ohio. Any dispute arising under this Agreement shall be subject to the jurisdiction of the courts of the State of Ohio, with venue in Franklin County.
- Entire Agreement: This Agreement, including its Schedules, constitutes the entire agreement between the Parties regarding the Work and supersedes all prior discussions or agreements, written or oral, on the subject matter herein.
- Amendment: This Agreement may only be amended by a written instrument signed by both Parties.
- Assignment: Publisher may assign this Agreement to a successor entity within the J Merrill One enterprise or to a purchaser of substantially all of Publisher's assets; Author may not assign this Agreement without Publisher's prior written consent.
- Notices: All notices under this Agreement shall be in writing and delivered to the addresses set forth above or such other address as either Party designates in writing.
- Force Majeure: Publisher's obligations under this Agreement shall be extended by any period of force majeure (fire, flood, strike, acts of God, or other circumstances beyond Publisher's reasonable control); Publisher shall nonetheless use reasonable efforts to maintain print-on-demand availability of the Work where feasible.
- Bankruptcy: If a petition in bankruptcy or reorganization is filed by or against Publisher, or Publisher makes an assignment for the benefit of creditors, Author may terminate this Agreement by written notice, and all rights granted to Publisher shall thereupon revert to Author.
- Multiple Authors: Where "Author" refers to more than one person, such persons shall be jointly and severally responsible for all obligations under this Agreement and shall share royalties as set forth in Schedule A, absent a separate written agreement among themselves.
- Attorneys' Fees: In any action arising under this Agreement, each Party shall bear its own attorneys' fees and costs, unless otherwise ordered by a court of competent jurisdiction.
- Severability: If any provision of this Agreement is held unenforceable, the remainder of this Agreement shall remain in full force and effect.

Signatures

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date first written above.

PUBLISHER: J Merrill Publishing, Inc. (JM Signature)

By: ____

Name: Jackie Smith, Jr.

Title: Founder & CEO, J Merrill One

Date: ____

AUTHOR:

By: ____

Name: Validation Author

Date: ____

Schedule A — Work Details

- Final Title and Subtitle: [ ]
- Author's Legal and Professional/Pen Name: [ ]
- Manuscript Delivery Requirements (format, word-processing program, method of delivery): [ ]
- Anticipated Word Count: [ ]
- Delivery Date: [ ]
- Imprint: JM Signature
- Genre / Category: [ ]
- Territory: [ ]
- Language: [ ]
- Formats Acquired (print / ebook / audio): [ ]
- Series Information (if applicable): [ ]
- Target Publication Date or Window: [ ]
- Royalty Allocation Among Co-Authors, if applicable: [ ]
- Complimentary-Copy Configuration (if different from Section 3A.1 default of 10): [ ]
- Special Permissions or Third-Party Content Required: [ ]
- Approved Deviations from Standard Agreement Terms, if any: [ ]
- Artwork (as referenced in Section 3C.0): illustrations, photographs, charts, graphs, and similar visual materials to be included in the Work, if any: [ ]
- Frontmatter / Backmatter (as referenced in Section 3C.0): foreword, introduction, preface, bibliography, index, and similar matter to be included in the Work, if any: [ ]

Schedule B — Out-of-Print and Reversion Procedure

B.1 Out-of-Print Definition. The Work shall be deemed "out of print" if, during any rolling twelve (12) month period, combined sales of the Work across all formats (print, ebook, and audio) total fewer than fifty (50) paid units, and Publisher has no active marketing, relisting, or reissue plan for the Work.

B.1a Active Plan Defined. An "active marketing, relisting, or reissue plan" must identify concrete actions, responsible parties, and a commercially reasonable implementation timeline. Continued passive availability of the Work through print-on-demand or electronic distribution alone, without more, does not constitute an active plan.

B.2 Reversion Request. If Author reasonably believes the Work is out of print as defined in B.1, Author may submit a written reversion request to Publisher.

B.3 Publisher Response and Cure Period. Publisher shall have sixty (60) days from receipt of Author's written request to either (a) demonstrate an active marketing, relisting, or reissue plan sufficient to cure the out-of-print status, or (b) agree that the Work is out of print.

B.4 Effect of Reversion. If Publisher does not cure within the sixty (60) day period, or agrees the Work is out of print, all rights granted to Publisher under this Agreement shall revert to Author, subject to Publisher's right to sell off existing inventory in the ordinary course, and subject to any third-party licenses granted under Section 6 prior to the reversion date.